

24VECV06161 24VECV06161

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C07%2F14%2F2026

Source SHA-256: 366df48a2e5c99f4ead76ea73d4ad022ae7fa3f555cc340f8141fc21451de9be

Case Number: 24VECV06161 Hearing Date: July 14, 2026 Dept: T

24VECV06161 LIRD V AVALONBAY

[TENTATIVE] ORDER: Plaintiff Ana Del Carmen Lird's Motion for Evidentiary Sanctions is DENIED.

Plaintiff Ana Del Carmen Lird's Request for Monetary Sanctions is DENIED.

Defendant AvalonBay Communities, Inc.'s Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,000.00 against Plaintiff Ana Del Carmen Lird and Counsel, jointly and severally.

Introduction

Plaintiff Ana Del Carmen Lird (Plaintiff) moved for evidentiary sanctions against Defendant AvalonBay Communities, Inc. (Defendant) under Code of Civil Procedure section 2023.030 subdivision (c). Plaintiff requests monetary sanctions in the amount of \$3,250.00 be imposed against Defendant, representing attorney's fees and costs incurred in relation to the instant motion. Defendant opposes Plaintiff's motion, and requests monetary sanctions in the amount of \$1,250.00 be imposed against Plaintiff and her counsel of record, jointly and severally.

Discussion

Plaintiff argues Defendant willfully or negligently destroyed or failed to preserve surveillance footage and photographs, contrary to Defendant's policies, following Plaintiff's slip and fall incident. (Mot., p. 5.) Plaintiff requests the Court impose evidentiary sanctions against Defendant for misuse of the discovery process, precluding Defendant from introducing evidence related to the withheld materials. (Mot., p. 12.)

In opposition, Defendant argues there was no spoliation of evidence, as photographs were not taken as part of Defendant's employees' investigation, and the surveillance camera was vandalized and inoperable at the time of Plaintiff's alleged fall. (Opp., p. 3; Delashaw Decl., para. 4.)

In reply, Plaintiff argues Defendant's vandalism argument is unsupported and does not excuse spoliation. (Rep., p. 3.) Plaintiff argues Defendant has not disputed its failure to take or preserve photos required by Defendant's own policies. (Rep., p. 5.) Finally, Plaintiff argues Plaintiff has been substantially prejudiced by Defendant's failure to preserve its own evidence. (Rep., pp. 5-6.)

Pursuant to Code of Civil Procedure section 2023.030 subdivision (c), evidentiary sanctions may be imposed prohibiting parties engaged in the misuse of the discovery process from introducing designated matters in evidence. (Code Civ. Proc., sec. 2023.030, subd. (c).) “When exercising its discretion to determine which form of sanction is most appropriate for a discovery violation, a trial court should consider various factors, including ‘the importance of the materials that were not produced—from the perspective of the offended party’s ability to litigate the case—and what prejudice, if any, the offended party suffered....’” (Victor Valley Union High School District v. Superior Court of San Bernardino County (2023) 91 Cal.App.5th 1121, 1158 (Victor Valley).)

The Court finds evidentiary sanctions are inappropriate given the lack of evidence of Defendant’s alleged discovery violations. Defendant served verified discovery responses to Plaintiff’s Request for Production on October 28, 2025. (Opp., p. 4; See also Plaintiff’s Mot., Ex. 1.) In their responses, Defendant stated they did not locate any photographs after conducting a diligent search and reasonable inquiry, and that video surveillance never existed. (Opp., p. 4; See also Plaintiff’s Mot., Ex. 1.) Further, Plaintiff states Defendant did not take photographs following the alleged incident. (Mot., p. 5; Madison Decl., para. 4.) Plaintiff asserts, in a conclusory fashion, that surveillance video was taken and was subsequently lost, deleted, or otherwise not preserved. (Mot., p. 5.)

Therefore, the crux of Plaintiff’s argument lies in the assertion that Defendant’s failure to comply with its own policies and procedures regarding documentation constitutes spoliation. The duty to preserve evidence arises when litigation is “reasonably foreseeable.” (Victor Valley, supra, 91 Cal.App.5th at p. 1144.) The court in Victor Valley reasoned that the school district’s internal procedures for collecting and forwarding incident reports immediately following an incident were compelling evidence that the district recognized potential litigation. (Victor Valley, supra, 91 Cal.App.5th at p. 1156.) Here, like the Victor Valley defendant, Defendant’s policies and procedures requiring employees to take photographs following any incident involving injury on the premises suggest Defendant’s anticipation of foreseeable litigation.

However, while Defendant’s policies may suggest an awareness that slip and fall incidents could lead to litigation, the existence of such a policy does not, by itself, establish that Defendant deliberately destroyed or failed to preserve evidence. “[A] party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or defense.” (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1227.)

Here, Plaintiff fails to provide evidence that Defendant deliberately chose not to photograph the scene or deliberately destroyed the surveillance footage. Plaintiff’s counsel declares Defendant’s manager, Satenik Gasparyan, confirmed in her May 11, 2026, deposition that no photographs were taken. (Madison Decl., para. 4.) However, Defendant’s counsel declares Satenik Gasparyan testified she would need to investigate the existence of the photographs and the surveillance footage. (Delashaw Decl., para. 5.) Further, Defendant’s Person Most Knowledgeable (PMK) Carl Merin testified no photographs were taken as part of the investigation and the surveillance camera was inoperable at the time of Plaintiff’s alleged fall. (Delashaw Decl., para. 4.) Plaintiff has not provided competent evidence, since Defendant’s PMK’s deposition clarifies Satenik Gasparyan’s uncertainty regarding whether photographs and surveillance footage was taken.

Further, the Court finds Plaintiff has not met her burden of showing prejudice. Plaintiff has not been prejudiced because she likely has access to photographs of the premises on the day of the incident. Plaintiff’s son testified at his deposition that he recalled taking photographs of the location where Plaintiff allegedly fell and could likely locate them. (Delashaw Decl., para. 6.) Plaintiff has not disputed that these photographs exist, has not produced them, and has not explained why they would fail to document the condition of the premises at the time of the incident.

The court in Victor Valley laid out a two-part test when determining which form of sanction is most appropriate for a discovery violation: (1) the importance of the materials that were not produced, “from the perspective of the offended party’s ability to litigate the case,” and (2) what prejudice, if any, the offended party suffered. (Victor Valley, supra, 91 Cal.App.5th at p. 1158.) Here, Plaintiff has access to photographs that show the location where Plaintiff allegedly fell, which supports her ability to litigate the case. Therefore, Plaintiff has not been substantially prejudiced as there is likely photographic evidence to produce to a jury, and the lack of Defendant’s photographs and surveillance footage does not hinder her ability to litigate.

Plaintiff’s motion for evidentiary sanctions is DENIED.

Pursuant to Code of Civil Procedure section 2023.030 subdivision (a), a court may impose a monetary sanction ordering a party engaging in the misuse of discovery pay reasonable expenses, including attorney's fees. (Code Civ. Proc., sec. 2023.030, subd. (a).) A court may also impose this sanction on a party who unsuccessfully asserted another has engaged in the misuse of the discovery process. (Code Civ. Proc., sec. 2023.030, subd. (a).)

Because this Court is denying Plaintiff's motion, Plaintiff's request for monetary sanctions is DENIED.

Defendant also requests monetary sanctions in the amount of \$1,250.00 pursuant to Code of Civil Procedure section 2023.030(a). Defendant's counsel claims to have spent one hour reviewing the motion, three hours preparing the opposition, and anticipates spending one hour attending the hearing, at an hourly rate of \$250.00. (Delashaw Decl., para. 9.) The Court finds three hours to prepare the Opposition excessive for a motion of this scope and reduces that component to two hours. The Court reduces the sanctions request to a reasonable amount of \$1,000.00, consisting of one hour reviewing the motion, two hours preparing the opposition, and an anticipated one hour attending the hearing at an hourly rate of \$250.00. Defendant's request for sanctions is GRANTED in the amount of \$1,000.00 against Plaintiff and counsel.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.